

For the statute extends only to misprision of clerks. 10. For the same reason they do not extend to any error or misprision of the Judges in any term past. 2 R. 3. 11. 9 E. 4. 3. *Vide* 30 H. 6. 1. But misprision of the clerk in the entry of the judgment of a thing which is apparent, (b) and not of necessity, is amendable, as the misprision of the summing of the arrearsages before and pending the writ of annuity, shall be amended, 35 H. 8. Dyer 55. 11. They do not extend to that, where the justice of Nisi Prius takes the verdict *post ipsum diem* in bank, 1 Ma. Dyer 97. and 33 H. 6. 25. 12. They do not extend to want of warrant of attorney. 13. This statute nor the statute of 32 H. 8. c. 30. do not extend to help any of the imperfections or misprisions, where a verdict is given on an issue joined betwixt the demandant and the vouchee, (c) or the tenant and the vouchee, as it was resolved Mich. 1 & 2 Phil. & Mar. Bendloe. But if any error in law be in the judgment, as *ideo in misericordia*, for *pro capiatur*, or *e contra*, or the like; † that is not amendable in another term, as it has been oftentimes adjudged (H). 14. Nor do they extend to an appeal, nor to pleas of the Crown, nor to any proceeding upon them, for they are excepted, nor to the amendment of any exigent, to make any one to be outlawed, &c. 20 H. 6. 18. 7 E. 4. 16. 22 E. 4. 7. 38 H. 6. 3. 21 H. 7. 34. *Vide* 7 H. 4. 27. Now as to misprisions not remedied, neither by the stat. of 32 H. 8. c. 30. nor by the stat. of 18 El. c. 14. 1. All the said misprisions not remedied by the said stat. of 8 H. 6. remain yet not remedied by any law or statute where no verdict is given upon issue joined: as if judgment [163 a] be given upon confession, demurrer, *nihil dicit*, *non sum informatus*, or otherwise than by verdict of twelve men upon issue joined. 2. When a verdict upon issue tried is given, ten misprisions are not remedied by the statutes of 32 H. 8. 18 Eliz. or any other statute, but yet remain not amendable. 1. Material variance betwixt the original and the count, as it is resolved in *Bishop's*

(b) 2 Roll. Rep. 253, 254.

(c) 11 Co. 6. b. 5 Co. 36. b. 1 Anders. 26. 27. pl. 60. O. Benl. Kelw. 207. b. Benl. in Ash. pl. 5. Hob. 281. 21 Jac. c. 13.

† *Vide* stat. 4 & 5 Annæ, c. 61.

(H) By stat. Jac. 1. c. 13. judgment after verdict shall not be stayed or reversed by reason of any variance in form only between the original writ or bill, and the declaration, plaint, or demand, &c. or by reason that the *venire facias*, *habeas corpora*, or *distringas* is awarded to a wrong officer upon any insufficient suggestion, or by reason the visne is in some part misawarded or sued out of more places, or fewer places, than it ought to be, so as some one place be right named, &c. &c. or for that the sheriff's name or other officer's name is not set to the return of any such writ, so as upon examination it be proved that the said writ was returned by the sheriff, or under sheriff, or any such officer; and by 16 and 17 Car. 2. c. 8. judgment after verdict shall not be staid or reversed for want of form or pledges returned upon the original writ, or because the sheriff's name is not returned thereon, or for want of pledges upon any rule or declaration, &c. &c. nor for want of averment of *hoc paratus est verificare*; or of *hoc paratus est verificare per recordum*, &c.; or for that there was no right venue, so as the cause were tried by a jury of the proper county or place where the action is laid; nor any judgment after verdict, confession by *cognovit actionem* or *relicta verificatione* shall be reversed for want of *misericordia* or *capiatur*, or by reason that a *capiatur* is entered for a *misericordia*, or *e converso* &c. By 5 Geo. 1 c. 13. judgment after verdict shall not be stayed or reversed for any defect or default in them in form or substance, in any bill, writ original or judicial, or for any variance in such writs from the declaration or other proceedings.

By stat. 4 Anne, c. 16. § 2., the Statutes of Jeofails are extended to judgments upon confession, *nil dicit*, or *non sum informatus* in any Court of Record, so as there be an original writ or bill and warrants of attorney, duly filed according to law. And by stat. 9 Anne, c. 20. § 7, this and all the Statutes of Jeofails are extended to writs of *mandamus*, and informations in nature of a *quo warranto*.

By stat. 6 Geo. 4. cap. 50. § 13. Every writ of *venire facias* for the trial of any issue, civil or criminal, shall direct the sheriff to return the jury of the body of his county.